

MUTUAL NON-DISCLOSURE AGREEMENT

This Mutual Non-Disclosure Agreement ("Agreement") is entered into as of April 1, 2025 ("Effective Date") by and between Nexacore Inc., a Delaware corporation having its principal place of business at 100 Innovation Drive, Boston, MA 02101 ("Party A"), and VendorI Inc., a California corporation having its principal place of business at 450 Digital Avenue, Atlanta, GA 30309 ("Party B"), collectively referred to as the "Parties." The Parties desire to explore a potential data partnership or licensing arrangement (the "Proposed Transaction") and may disclose certain proprietary and confidential information to each other in connection therewith.

Section 1. DEFINITION OF CONFIDENTIAL INFORMATION

"Confidential Information" means any and all non-public information disclosed by one Party (the "Disclosing Party") to the other Party (the "Receiving Party"), whether disclosed orally, in writing, electronically, or by any other means, that is designated as confidential or proprietary, or that a reasonable person familiar with the Disclosing Party's business would understand to be confidential given the nature of the information and the circumstances surrounding its disclosure. Without limiting the foregoing, Confidential Information includes: (i) business strategies, plans, and projections; (ii) financial data, pricing, and fee structures; (iii) technical architectures, algorithms, data schemas, and software; (iv) customer and prospect lists and contact information; (v) product roadmaps and development plans; (vi) personnel information; (vii) marketing strategies and competitive analyses; and (viii) any information marked "Confidential," "Proprietary," or with a similar legend.

Section 2. OBLIGATIONS OF RECEIVING PARTY

Each Receiving Party agrees to the following obligations with respect to Confidential Information:

2.1 **HOLD IN CONFIDENCE.** The Receiving Party shall hold all Confidential Information in strict confidence and shall use at least the same degree of care to protect it as it uses to protect its own most sensitive confidential information, but in no event less than reasonable care.

2.2 **LIMIT DISCLOSURE.** The Receiving Party shall disclose Confidential Information only to its employees, contractors, directors, and professional advisors who have a legitimate need to know such information in connection with the Proposed Transaction and who are bound by written confidentiality obligations no less restrictive than those set forth herein.

2.3 **USE LIMITATION.** The Receiving Party shall use Confidential Information solely for

the purpose of evaluating, negotiating, and, if agreed, consummating the Proposed Transaction. The Receiving Party shall not use Confidential Information for any other purpose, including to compete with the Disclosing Party or to develop products or services.

2.4 NOTIFICATION OF UNAUTHORIZED DISCLOSURE. The Receiving Party shall promptly notify the Disclosing Party in writing upon discovery of any actual or suspected unauthorized access to, disclosure of, or use of Confidential Information, and shall cooperate fully with the Disclosing Party to investigate and remediate such incident.

2.5 RETURN OR DESTRUCTION ON REQUEST. Upon the Disclosing Party's written request or upon termination of this Agreement, the Receiving Party shall promptly return all tangible materials containing Confidential Information or, at the Disclosing Party's election, certifiably destroy all such materials, and shall provide written certification of such destruction within ten (10) business days.

Section 3. EXCLUSIONS FROM CONFIDENTIAL INFORMATION

The confidentiality obligations of this Agreement shall not apply to information that:

- (a) was known to the Receiving Party prior to its disclosure by the Disclosing Party, as evidenced by written records predating such disclosure;
- (b) is or becomes generally available to the public through no act or omission of the Receiving Party or any person to whom the Receiving Party disclosed such information;
- (c) is independently developed by the Receiving Party without reference to or use of the Disclosing Party's Confidential Information, as evidenced by contemporaneous written records; or
- (d) is required to be disclosed by applicable law, regulation, judicial or administrative order, or the rules of any stock exchange, provided that the Receiving Party: (i) gives the Disclosing Party prompt prior written notice to the extent legally permissible; (ii) cooperates with the Disclosing Party's efforts to seek a protective order or other appropriate relief; and (iii) discloses only that portion of the Confidential Information that is legally required to be disclosed.

Section 4. TERM AND SURVIVAL

This Agreement shall be effective as of the Effective Date and shall continue in full force and effect for a period of two (2) years (the "Term"), unless earlier terminated by either Party upon thirty (30) days written notice to the other Party. Notwithstanding the foregoing, the confidentiality obligations of each Party with respect to Confidential Information disclosed during the Term shall survive the expiration or termination of this Agreement for a period of three (3) years following such expiration or termination. Obligations with respect to trade secrets shall survive for so long as such information constitutes a trade secret under applicable law.

Section 5. RETURN OF INFORMATION

Within ten (10) business days after the expiration or termination of this Agreement, or at any time upon the Disclosing Party's written request, the Receiving Party shall return or certifiably destroy all Confidential Information and all copies, summaries, notes, analyses, and compilations thereof in its possession or control. The Receiving Party shall provide written certification of such return or destruction signed by an authorized representative. Notwithstanding the foregoing, the Receiving Party may retain one archival copy solely for legal compliance purposes, subject to continuing confidentiality obligations hereunder.

Section 6. NO LICENSE

Nothing in this Agreement shall be construed as granting either Party any license, right, or interest in any Confidential Information, patent, copyright, trademark, trade secret, or other intellectual property of the other Party, whether by estoppel, implication, or otherwise. Each Party retains all right, title, and interest in and to its own Confidential Information and intellectual property. The disclosure of Confidential Information hereunder does not obligate either Party to enter into any further agreement or business relationship.

Section 7. NO WARRANTY

ALL CONFIDENTIAL INFORMATION IS PROVIDED "AS IS" WITHOUT ANY REPRESENTATION OR WARRANTY, EXPRESS OR IMPLIED, AS TO ITS ACCURACY, COMPLETENESS, FITNESS FOR A PARTICULAR PURPOSE, OR NON-INFRINGEMENT. THE DISCLOSING PARTY SHALL NOT BE LIABLE FOR ANY DAMAGES ARISING FROM THE RECEIVING PARTY'S USE OF OR RELIANCE ON CONFIDENTIAL INFORMATION.

Section 8. EQUITABLE RELIEF

Each Party acknowledges that a breach or threatened breach of the confidentiality obligations set forth in this Agreement would cause irreparable harm to the Disclosing Party for which monetary damages would be an inadequate remedy. Accordingly, each Party agrees that the Disclosing Party shall be entitled to seek injunctive relief or other equitable remedy to prevent or restrain any such breach or threatened breach, without the requirement of posting a bond or proving actual damages, in addition to any other remedies available at law or in equity.

Section 9. MISCELLANEOUS

9.1 Entire Agreement. This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior and contemporaneous negotiations, representations, and understandings between the Parties.

9.2 Amendment. This Agreement may not be amended, modified, or waived except by a written instrument signed by authorized representatives of both Parties.

9.3 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of law principles.

9.4 Counterparts. This Agreement may be executed in counterparts, each of which shall be deemed an original. Electronic signatures shall be deemed valid and binding.

FOR NEXACORE INC.:**FOR VENDORI INC.:**

Signature: _____**Name:** Alex Morgan**Title:** EVP, Data & Analytics**Date:** _____**Signature:** _____**Name:** Taylor Kim**Title:** Chief Business Officer**Date:** _____**ACKNOWLEDGMENT OF NOTARY PUBLIC**

STATE OF MARYLAND

County of Howard, ss.

On this ____ day of _____, 2025, before me personally appeared Alex Morgan, known to me or satisfactorily proven to be the person whose name is subscribed to the within instrument and acknowledged that she executed the same for the purposes therein contained. In witness whereof, I hereunto set my hand and official seal.

Notary Public: _____

My commission expires: _____